

Court No. - 37

Case :- WRIT - C No. - 37483 of 2017

Petitioner :- Kaluwa

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pushpendra Singh

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Put up tomorrow as fresh to enable the learned counsel for the petitioner to serve a copy of the writ petition on the learned counsel for the respondent no.2.

Order Date :- 21.8.2017

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pushpendra Singh

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Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner and Sri Anshul Singhal holding brief of Sri Chandan Agarawal, learned counsel for the Electricity Department.

The petitioner is being proceeded against for recovery of consumption of the electricity which is stated to have been allegedly made without having a proper connection.

Learned counsel for the petitioner submits that is not a case of theft inasmuch as the electricity connection stood in the name of the grand-father of the petitioner and therefore the petitioner can not be stated to have consumed electricity by theft.

We will not enter into this issue keeping in view the fact that the first information report against the petitioner has been lodged under Section 135 of the U.P.Electricity Act, 2003. The recovery has been initiated in respect of the alleged assessed amount which the petitioner is disputing.

Having considered the submissions raised and having heard learned counsel for the parties we dispose off the writ petition with liberty to the petitioner to approach the second respondent along with the certified copy of this order who shall look into the grievances of the petitioner and in the event the petitioner is found liable to pay any such dues the Executive Engineer shall proceed to pass an appropriate order keeping in view the provisions of Clause 6.14 of the U.P.Electricity Supply Code, 2005 extending the benefit of installments to the petitioner.

Writ petition is disposed off with the said directions.

Order Date :- 22.8.2017

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